

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Certiorari-Abandonment and Stay-Dissolution Order

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered August 12, 2026

Before Composite Jurist March, presiding, Composite Jurist Rowan, and Composite Jurist Slate. The Court's July 29 order stayed mandate because Blue Ember had authorized preparation of a petition for a writ of certiorari and Granite Heron agreed to secure the affirmed judgment. The stay required immediate notice if that petition was abandoned.

Authorized counsel for both parties have now confirmed to the clerk that Blue Ember's litigation committee withdrew its certiorari authorization and that no petition will be filed. The Court records that confirmation in this order. It is not treating the confirmation as a motion, notice, or other party filing, and no additional filing is required to give this judicial act effect.

The concrete petition premise that supported the Rule 41(d)(2) finding has therefore ended. Continued withholding would no longer advance Supreme Court review and would delay ordinary effect of a final judgment without the good cause found on July 29. The stay is dissolved by this order.

The clerk shall release the mandate on August 13, 2026. Dissolution does not decide whether the abandoned question was substantial, fault either party for changing course, or alter the security arrangement before mandate issues.

Effect and branch confinement

The mandate released after this order shall transmit the July 9 counterfactual judgment: mitigation JMOL is affirmed, and the December 15, 2025 amended judgment for \$2,700,000 is affirmed. The conditional Rule 59 damages new-trial ruling remains dormant. There is no remand, and the disposition makes no change to liability or causation.

Once mandate issues, questions concerning release or substitution of the security may be addressed through ordinary district administration, consistent with the undertaking and the affirmed judgment. This Court expresses no view on collection mechanics, accrued interest, or the precise timing for discharge of a bond. Those collateral matters do not extend the dissolved stay.

This is the panel's exact order entering dissolution after counsel's confirmation of abandonment. It is neither a synthetic motion attributed to a party nor a substitute for a nonexistent certiorari filing. The clerk shall docket this order as a court document and circulate it electronically to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb.

The order depends only on the July 29 grant and the abandonment circumstance within that same grant path. It does not incorporate the alternate denial-path motion, response, order, or mandate. Nothing described here occurred in the actual appeal, affects the actual causation-only Rule 50(a) motions, or changes the actual decision reversing mitigation JMOL and remanding for a damages retrial.